

2:00 PM

LINE: 5

25-CIV-04772

BETHANY LIOU, ET AL VS. JON O. FREEMAN, ET AL

BETHANY LIOU
JON O. FREEMAN

PRO SE
SABAA GHOMASHCHI

DEFENDANTS SHAFIQ TAYMUREE AND STONECREST FINANCIAL, INC'S MOTION FOR ISSUE AND MONETARY SANCTIONS

TENTATIVE RULING:

For the reasons stated below, the Motion for Imposition of Monetary Sanctions by Defendants Stonecrest Financial, Inc., Secured Income Fund-II, LLC, PLM Lender Services, Inc., Jon O. Freeman, and Shafiq Taymuree ("Defendants") against Plaintiffs Bethany Liou, Grande Oak, LLC, and Grande, LLC ("Plaintiffs") is **CONTINUED** to October 8, 2026 at 2:00 p.m. in Department 2 for Defendants to serve Plaintiffs with a copy of the motion and supporting papers.

On December 10, 2025, Plaintiffs' counsel filed a motion to be relieved as counsel. At that time, Defendants had not filed or served this Motion for Sanctions, and the hearing on this motion was not included in the proposed order relieving counsel. On December 17, 2025, Defendants filed this Motion for Sanctions and properly served it on Plaintiffs' counsel, who was then counsel of record. However, on December 19, 2025, the Court granted Plaintiffs' counsel's application to be relieved as counsel. The order relieving counsel does not identify this Motion for Sanctions or its hearing date. As a result, there is no evidence that Plaintiffs, who are now in propria persona, have notice of this hearing. No opposition has been filed or served.

Defendants shall serve Plaintiffs with the Motion for Sanctions and all supporting papers no later than July 1, 2026, and shall file proof of service with the Court at least five court days before the continued hearing date.

Plaintiffs may file and serve an opposition to the motion no later than nine court days before the continued hearing date. Although Plaintiff Bethany Liou may represent herself in this action, Plaintiffs Grande Oak, LLC, and Grande, LLC are limited liability companies and must be represented by licensed counsel to proceed in this action. (See *CLD Construction, Inc. v. City of San Ramon* (2004) 120 Cal.App.4th 1141, 1145, 1149 [corporation must be represented by licensed counsel in proceedings before a court, and failure to be represented by counsel is a curable defect]; see also *Prato v. Gioia* (2025) 112 Cal.App.5th 651, 663 [LLC/corporate entity could not represent itself or appear through an individual].)

Defendants may file and serve any reply no later than five court days before the continued hearing date.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, counsel for Defendants shall prepare a written order consistent with the Court's ruling for the Court's signature pursuant to California Rules of Court, rule 3.1312, and shall provide written notice of the ruling to all parties who have

appeared in the action, as required by law and the California Rules of Court. The Court alerts the parties to Local Rule 3.403(b)(iv) regarding the wording of proposed orders.

2:00 PM

LINE: 6

25-CIV-05899

PHILIPPOS GRATSINOPOULOS, ET AL VS. FRANK RAMIREZ, ET AL

PHILIPPOS GRATSINOPOULOS
FRANK RAMIREZ

MARCIA A. WALLIS
CANDICE S. NAM

DEFENDANTS FRANK RAMIREZ AND FRANK RAMIREZ INSURANCE AGENCY, INC.'S DEMURRER TO FIRST AMENDED COMPLAINT

TENTATIVE RULING:

For the reasons stated below, Defendants Frank Ramirez and Frank Ramirez Insurance Agency's Demurrer to the Sixth Cause of Action for Unfair Competition, Seventh Cause of Action for Negligent Misrepresentation, and Eighth Cause of Action for Promissory Estoppel in Plaintiff's First Amended Complaint ("FAC") is **SUSTAINED WITH LEAVE TO AMEND** pursuant to Code of Civil Procedure section 430.10, subdivision (e).

SEVENTH CAUSE OF ACTION FOR NEGLIGENT MISREPRESENTATION

The elements of a claim for negligent misrepresentation are: (1) the misrepresentation of a past or existing material fact; (2) without reasonable ground for believing it to be true; (3) with intent to induce another's reliance on the fact misrepresented; (4) justifiable reliance on the misrepresentation; and (5) resulting damage. (*Y.P. v. Wells Fargo Co.* (2026) 119 Cal.App.5th 1069; *Sproul v. Vallee* (2025) 116 Cal.App.5th 285.) Each element must be factually and specifically alleged, as liberal construction of pleadings does not apply to sustain defective misrepresentation pleadings. (*Cadlo v. Owens-Illinois, Inc.* (2004) 125 Cal.App.4th 513.) The causal elements, particularly reliance, must be specifically pleaded, and a mere assertion of reliance without specific factual allegations is insufficient. (*Id.*; *National Union Fire Ins. Co. of Pittsburgh, PA v. Cambridge Integrated Services Group, Inc.* (2009) 171 Cal.App.4th 35.) Courts have found complaints inadequate where they fail to identify who made the representation, what specific factual representations were made, or facts suggesting the defendant should have known the representations were untrue. (*Kim v. Westmoore Partners, Inc.* (2011) 201 Cal.App.4th 267.)

Here, the demurring Defendants argue that Plaintiff's alleged reliance on a representation inconsistent with the Agent Appointment Agreement ("AAA") was not reasonable given Plaintiff's industry experience and the terms of the AAA. Plaintiff alleges that "Defendant Ramirez represented to Plaintiff that he had authority from Farmers to approve the sale of Plaintiff's business to the Buyer Plaintiff identified. He also stated that Plaintiff did not need to appeal his termination because Farmers would honor the sale to his approved buyer and/or contract value." (FAC, ¶ 164.) Plaintiff further alleges that "Defendant Ramirez in fact knew or should have known that Farmers had not approved the transaction because Buyer was not to a family member, and he knew the basis of Plaintiff's termination," and that Ramirez "knew or should have known that he did not have the authority to tell Plaintiff that Defendant Farmers gave him authority to approve the Buyer." (*Id.*, ¶ 168.)